

Court No. - 32

Case :- WRIT - C No. - 10118 of 2019

Petitioner :- M/S Cholamandalam Investment And Finance Company Limited

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shive Datta Yadav

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Shashi Kant Gupta,J.

Hon'ble Pradeep Kumar Srivastava,J.

Heard learned counsel for the parties and perused the record.

This writ petition has been filed inter alia for the following reliefs:

"(a) Issue a writ, order or direction in the nature of certiorari to quash the impugned citation of recovery dated 30.07.2018 issued by Tehsildar, Tehsil and District -Fatehpur the respondent no. 3 (Annexure No. 1 to this writ petition).

(b) Issue any other writ, order or direction which this Hon'ble Court may deem fit and proper under the facts and circumstances of the case.

(c) Award the cost of the writ petition in favour of the petitioner."

Learned counsel for the petitioner has submitted that petitioner M/s Cholamandalam Investment and Finance Company Limited (hereinafter called "company") has established a Branch office at Nauwabag, District Fatehpur and applied for new electricity connection of 10 K.W in the name of company. Electricity connection was sanctioned by Executive Engineer, Fatehpur and an estimated cost was communicated by letter dated 28.04.2017 to the petitioner for depositing the same. Petitioner has deposited the estimated cost as well as fee for inspection of the premises. He further submitted that without conducting inspection in presence of any employee of the company, a inspection report dated 18.05.2017 was prepared alleging the unauthorized use of electricity.

He further submitted that neither any notice nor any opportunity of hearing had been given before passing the final order of assessment of electricity charges and without providing /supplying any copy of final assessment order to the petitioner, respondent no. 3 has issued a citation of recovery dated 30.07.2018, which is violative of Clause 6.8(c)(i) of U.P. Electricity Supply Code, 2005.

After arguing the matter at some length, learned counsel for the petitioner has confined his prayer to the extent that the

petitioner may be permitted to make a fresh representation before the respondent no. 4 in respect of his grievances with a direction to the respondent no. 4 to decide the same within a stipulated period and till then the recovery certificate issued by the respondent no. 3 be kept in abeyance.

Sri Baleshwar Chaturvedi, learned counsel appearing on behalf of the Electricity Department has stated that he has no objection to the prayer so made by the learned counsel for the petitioner.

Considering the facts and circumstances of the case, without expressing any opinion on the merits of the case, this writ petition is finally disposed of with a direction to the petitioner to make a fresh representation before the respondent no.4- Executive Engineer, Electricity Distribution Division-Ist, Fatehpur ventilating his grievances within 15 days from today. In case, such representation is filed by the petitioner before the respondent no. 4- Executive Engineer within 15 days from today, the said authority shall dispose of the same in accordance with law within 30 days from the date of filing of the said representation, after affording opportunity of hearing to the petitioner and considering the evidence adduced, if any, in support of his contention.

For a period of 45 days from today or till the passing of the final order by the respondent no. 4- Executive Engineer on the representation moved by the petitioner, whichever is earlier, the recovery certificate dated 30.07.2018 issued by the respondent no. 3 shall remain in abeyance.

Order Date :- 1.4.2019 /Bhanu